25-840 INTERNATIONAL PARTNERS FOR ETHICAL CARE, INC. V. FERGUSON

DECISION BELOW: 146 F.4th 841

LOWER COURT CASE NUMBER: 24-3661

QUESTION PRESENTED:

The "interest of parents in the care, custody, and control of their children □ is perhaps the oldest of the fundamental liberty interests recognized by this Court." *Troxel v. Granville*, 530 U.S. 57, 65 (2000). But that right is mere rhetoric if federal judges bar parents from court via a miserly interpretation of standing doctrine-a question, as three Justices recently recognized, that is of "great and growing national importance." *Lee v. Poudre Sch. Dist. R-1*, 607 U.S. --, 2025 WL 2906469, *1 (2025) (Alita, J., statement) (citation omitted).

It is certainly important to Petitioners, who are parents of gender-confused children (including one child who previously ran away) and who do not wish to affirm that confusion. They challenged Washington laws designed to give runaway minors "gender affirming treatment" without parental notice or consent. But despite their being the challenged laws' target, and despite their alleging specific current harms and a substantial risk of specific future harms to their ability to parent, the Ninth Circuit held that Petitioners lacked Article III standing.

The question presented is:

Whether parents have standing to challenge a law or policy that deliberately displaces their decision-making role as to "gender transitions" of their children, and in so doing creates present and likely future impediments to their ability to parent their children as they deem best for them.

CERT. GRANTED 6/29/2026